

SUPREME COURT OF THE STATE OF N.Y.
COUNTY OF NEW YORK

HENRRY PALOMINO,

Plaintiff,

-against-

THE CITY OF NEW YORK,

Defendant.

INTENTIONAL TORT

Index No.

Date Purchased: *JULY 7 2014*

Plaintiff designates
NEW YORK County as the
place of trial.

SUMMONS

The basis of venue is:
Site of occurrence.

Plaintiff resides at:
1210 Elder Ave., Apt.
#4L, Bronx, NY 10472

County of Bronx

To the above-named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons to serve a notice of appearance on the plaintiff's attorney within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 20 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 2, 2014



MITCHEL I. HERSTIC, ESQ.
Attorney for Plaintiff
9 Murray Street
Fourth Floor
New York, New York 10007
(212) 349-5180

DEFENDANT'S ADDRESS:
100 Church Street
New York, N. Y. 10007

SUPREME COURT OF THE STATE OF N.Y.
COUNTY OF NEW YORK

-----X

HENRRY PALOMINO,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

Defendant.

-----X

Plaintiff, complaining of the Defendant,
by his attorney, MITCHEL I. HERSTIC, ESQ., does hereby respectfully show to this Honorable Court and alleges as follows, upon information and belief:

FIRST: That on the 9th day of April, 2013, at approximately 4:45 A.M., while the Plaintiff herein was lawfully a passenger on the #6 IRT downtown subway, near 23rd Street in Manhattan, and said Plaintiff's feet were resting on a subway seat, Police Officer MARSH PAUL, bearing badge number 950824 asked the Plaintiff for his identification. The Plaintiff produced his identification card from the country of Peru.

SECOND: Immediately thereafter, the Plaintiff herein was falsely detained, handcuffed, and falsely arrested by the aforementioned Police Officer.

THIRD: Thereupon, said New York City Police Department Officer did detain, seize and hold the Plaintiff herein, and did place him under arrest, and detained and imprisoned said Plaintiff without any reasonable or probable cause, and contrary to the laws of the State of New York as the Plaintiff produced

an identification card. The Plaintiff herein was incarcerated until April 11, 2013, at approximately 12:15 P.M..

FOURTH: That on April 11, 2013, at approximately 12:15 P.M., the Plaintiff pled to an adjournment in contemplation of dismissal, and that six months have elapsed since said date and the charge has been dismissed.

FIFTH: That the Plaintiff herein has complied with all conditions precedent to the bringing of this action, and has complied with all of the provisions of the Charter of the City of New York, and that prior to the bringing of this action, the Plaintiff duly served notice upon The City of New York of his intention to sue upon the claim set forth, and more than thirty days have elapsed since the presentation of said Notice of Claim, and that said claim remains unadjusted, and that the Comptroller has failed and/or refused to make any adjustments thereof, and this action has been commenced within the time provided for in the statute and act therefor.

SIXTH: That on the 24th day of October, 2013, a Hearing was held pursuant to Section 50-H of the General Municipal Law.

SEVENTH: That as a result of said assault and battery, the Plaintiff herein, HENRRY PALOMINO has been damaged in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this matter.

WHEREFORE, the Plaintiff herein, HENRRY PALOMINO, demands judgment against the Defendant, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limits which the lower courts would otherwise maintain, together with the costs and disbursements of this action.



MITCHEL I. HERSTIC, ESQ.
Attorney for Plaintiff
9 Murray Street
Fourth Floor
New York, New York 10007
(212) 349-5180

ATTORNEY CERTIFICATION

Pursuant to 22 NYCRR, Sect. 130-1.1. A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to the C.P.L.R..

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents therein are not frivolous as defined in Subsection C of Sect. 130-1.1.

Dated: New York, New York
July 2, 2014



MITCHEL I. HERSTIC

VERIFICATION

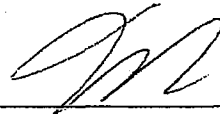
STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same are true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

The reason this verification is made by me and not by the Plaintiff herein is that the Plaintiff resides in a county other than the county where your affirmant maintains his law office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Conversations with the Plaintiff and information in the file.

Dated: July 2, 2014



MITCHEL I. HERSTIC

Index No.

Year 20

SUPREME COURT OF THE STATE OF N.Y.
COUNTY OF NEW YORK

HENRRY PALOMINO,

Plaintiff,

-against-

THE CITY OF NEW YORK,

Defendant.

SUMMONS and
VERIFIED COMPLAINT

MITCHEL I. HERSTIC

Attorney for Plaintiff

Office and Post Office Address, Telephone

9 MURRAY STREET

4th FLOOR

NEW YORK, N.Y. 10007-2281

TEL: (212) 349-5180

FAX: (212) 732-4443

To:

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐
NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within named Court on

20

☐
NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the Hon.
one of the judges of the within named Court,

at
on

20

, at

M.

Dated:

Yours, etc.

MITCHEL I. HERSTIC

Attorney for

Office and Post Office Address,

9 MURRAY STREET

4th FLOOR

NEW YORK, N.Y. 10007-2281

TEL: (212) 349-5180

To: